

M/s. Mehak Metals Pvt. Ltd. v. Paschimanchal Vidyut Vitran Nigam Ltd.

Allahabad High Court · Division Bench · 22 August 2016 · Writ - C No. 48343 of 2009 · **Dismissed as infructuous by lapse of time.**

HEADNOTE

Writ challenging an additional-security demand under para 4.20 of the U.P. Electricity Supply Code, 2005 was listed with similar 2009 matters and, without prejudice, additional security was stayed on the pattern of the interim in Writ Petition No. 30582 of 2009 (Vehlina Steels). On 22 August 2016 the petition was dismissed as infructuous after counsel stated it had become infructuous by lapse of time. Para 4.20 was not decided.

FACTUAL SUMMARY

M/s. Mehak Metals Pvt. Ltd. and another challenged a 5 February 2009 demand notice of Paschimanchal Vidyut Vitran Nigam Ltd. seeking additional security under para 4.20 of the U.P. Electricity Supply Code, 2005. They pointed to an interim order of 23 June 2009 in Writ Petition No. 30582 of 2009 (Vehlina Steels). The respondents said identical questions were pending in several 2009 matters. The Court listed this writ with those similar cases. In 2016 petitioners' counsel said the petition had become infructuous by lapse of time.

HOLDING-UNITS

HOLDING-UNIT · OFFTOPIC::procedural-listing

writ dismissed as infructuous

HOLDING

The writ against the para 4.20 additional-security demand was listed with similar 2009 matters and, without prejudice, respondents were restrained from demanding additional security until further orders, following the interim in Writ Petition No. 30582 of 2009. On 22 August 2016 the petition was dismissed as infructuous after counsel stated it had become infructuous by lapse of time. The demand was not decided on merits.

¶ 9.9.2009; 22.8.2016

PRINCIPLE TAGS

additional-security Writ challenging an additional-security demand under para 4.20 of the U.P. Electricity Supply Code, 2005 was listed with similar 2009 matters and, without prejudice, additional security was stayed on the pattern of the interim in Writ Petition No. 30582 of 2009 (Vehlina Steels).. ¶ 9.9.2009; 22.8.2016

writ-dismissed-as-infructuous-with-liberty-to-move-afresh Writ challenging an additional-security demand under para 4.20 of the U.P. Electricity Supply Code, 2005 was listed with similar 2009 matters and, without prejudice, additional security was stayed on the pattern of the interim in Writ Petition No. 30582 of 2009 (Vehlina Steels).. ¶ 9.9.2009; 22.8.2016

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER ADDITIONAL SECURITY WAS LEVIABLE UNDER PARA 4.20 OF THE U.P. ELECTRICITY SUPPLY CODE, 2005

The 5 February 2009 demand was never adjudicated; the writ was listed with similar matters and later dismissed as infructuous. ¶ 9.9.2009

TABLE OF AUTHORITIES

AUTHORITY	PROPOSITION	HOW TREATED	CITED BY	TREATMENT
<i>M/s. Vehlna Steels & Alloys Pvt. Ltd. v. Paschimanchal Vidyut Vitran Nigam Ltd.</i> Writ Petition No. 30582 of 2009 (order dated 23 June 2009)			Court (order dated 9.9.2009)	Referred

SCJ-728 · M/s. Mehak Metals Pvt. Ltd. v. Paschimanchal Vidyut Vitran Nigam Ltd. · · Supply Code Jurisprudence

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